

MAPETT LOGISTICS LIMITED
TERMS AND CONDITIONS FOR SERVICES

1. APPLICATION

- 1.1.The purpose of this Terms and Conditions is to govern the contractual relationship between Company and the Client who uses the services on the platform. By engaging in our services and/or website the Client agrees to bound by the terms and conditions of the company.
- 1.2.All the services are provided by the Company as Principal expect in the circumstances that the Company acts as an agent by law and/or by written agreement.
- 1.3.The Company provides a comprehensive range of services from logistics, clearing and forwarding, freight services (air, sea, road and rail transport), warehousing and storage facilities, logistics and cargo handling, trade facilitation, export facilitation, insurance facilitation, product procurement, digital commerce and general merchandise.

2. DEFINATION

- ‘Client’**- refers to any person who requests services from the Client whether by themselves, representatives, agents, heirs and/or employees.
- ‘Company’** refers to Mapett Logistics Limited.
- ‘Goods and services’**- refers to all the products (physical and digital), services, goods, and consultations, made available through the Website by the Company..
- ‘Third Party’**- refers to any person or business entity that is not the Company or the User but is involved in the provision of services. .
- ‘User’**- refers to any person or business entity who accesses or uses the Website.

3. OBLIGATIONS OF THE CLIENT

- 3.1.The Client warrants that they have reasonable knowledge of the matters affecting the conduct of business, including but not limited to the terms of purchase, logistics, freight, cargo handling, trade transactions, insurance and product procurement, is authorized to accept and is accepting the terms and conditions herein.
- 3.2.The Client warrants that the description and particulars of the goods provided to the Company are complete and accurate and the Client will be liable for any inaccurate and/or incorrect information.
- 3.3.The Client warrants that they shall not deliver to the company any dangerous goods, and in breach thereof, the Client shall be liable for all loss or damage whatsoever caused and the Client shall be obligated to defend and indemnify the company against all penalties, claims, damages, cost and expenses whatsoever arising in connection with the goods.

- 3.4.No Insurance will be effected unless with the express instructions given by the client, all insurance effected by the client is subject to terms and conditions set in all policies by the Insurance Company and the Company is an agent of client in respect to effecting insurance.
- 3.5.In the event the insurer disputes liability for any reason, the insurer shall have recourse against the insurers only. The company shall not have any liability or responsibility to the insurance despite that the premium upon the policy may not be at the same rate as that charged by the company.
- 3.6.The Client shall give, in due time, all necessary and accurate instructions to the company for the performance of transport services and/or of related services and logistics.
- 3.7.For circumstances of special delivery and/or transportation, such as transport of goods in controlled temperatures, transport of perishable goods, transport of vehicles, or transport of goods subjected to special regulations, the client is required to provide suitable equipment's in advance.
- 3.8.For security reasons, the company or any public authority has the right to open and inspect any shipment, cargo and/or consignment without any prior notice, any delay and/or any damage likely to result by such verification, shall not give right to anyone to claim for compensation from the Company.
- 3.9.The Client shall be solely responsible for all consequences resulting from failure to perform the duty of information and declaration regarding the specific nature and specificity of the goods where they require specific provisions.
- 3.10. In the event that the goods are rejected and/or refused by the consignee, leading to additional costs, owed and incurred, in connection with the goods, the costs shall be borne by the Client.
- 3.11. In order for the Company to effectively provide logistics, clearing, forwarding and related services, the Client agrees and undertakes to provide the Company with complete, accurate and authentic documentation relating to all goods submitted for transportation, customs clearance, warehousing or export.
- 3.12. The Client warrants that all information and documentation provided to the Company shall be true, correct and not misleading in any material respect. The Company shall be entitled to rely on such documentation when performing its services.

3.13. The Client shall ensure that all goods submitted for shipment, clearing, export or storage comply with all applicable customs laws, trade regulations and statutory requirements governing the importation, exportation and transportation of goods within and outside the Republic of Kenya.

3.14. The Client shall be solely responsible for the payment of all customs duties, import or export taxes, levies, port charges, inspection fees, handling charges, storage charges and any other regulatory fees imposed by government authorities, port operators, carriers or regulatory agencies, and the Client agrees that all such charges shall be paid promptly when due.

3.15. The Company reserves the right to suspend services, withhold release and/or delivery of the goods, charge interest of any outstanding amounts and recover all costs incurred in connection with non-payment and/or suspension of services.

4. MODE OF PAYMENT

4.1. The Company accepts various modes of payment for goods and services offered through the Website or through direct engagement with the Company. Accepted payment methods may include, but are not limited to:

- Mobile money payment platforms (such as M-Pesa, Airtel-money and other mobile payment services)
- Debit and credit card payments;
- Bank transfers or electronic funds transfers;
- Online payment gateways or payment service providers integrated into the Website; and
- Any other payment method that may be approved and communicated by the Company from time to time.

4.2. All payments made through the Website or through electronic channels shall be processed through secure payment platforms or authorized payment service providers. By submitting payment information, the user authorizes the Company and its designated payment processors to charge the selected payment method for the full amount payable for the goods or services purchased, including any applicable taxes, delivery charges, transaction fees, or service charges.

4.3. Where a payment is declined, reversed, or otherwise fails to clear for any reason, the Company reserves the right to cancel the corresponding order or suspend the provision of services until payment is successfully completed.

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5. LOSS AND DAMAGES

- 5.1. The Company shall not be responsible for any loss, delay, penalties, fines, seizure of goods or additional charges arising from inaccurate, incomplete or misleading information supplied by the Client.
- 5.2. The Company shall not be liable for any delays, confiscation, penalties or enforcement action taken by regulatory authorities due to non-compliance by the Client.
- 5.3. The Company shall not be liable to the Client in the event the goods and/or consignment are auctioned by Kenya Ports Authority; Kenya Revenue Authority or any other governmental/ Statutory Institution, on account of unpaid monies, statutory duties, penalties, rates or charges.

6. NATURE OF SERVICES

The Company provides the following services, including but not limited to:

- a. **Freight Services:** Air freight, Sea Freight, Road Freight, and Rail Freight;
- b. **Clearing and Forwarding Agents:** on behalf of the clients or as intermediaries between clients, port authorities, shipping lines, airlines, rail operators, regulatory authorities and insurance providers;
- c. **Product Sourcing and Export:** the company facilitates outsourcing of goods from international and local suppliers, but the company is not a manufacturer of goods sourced; the company does not warrant product quality unless expressly agreed in writing; the Company is an agent.
- d. **Digital and E-Commerce Services:** The Company offers services to assist client's set up social media accounts; Connecting clients and users to online marketplaces; and setting up online stores. However, the Company shall not be liable for account suspension, platform policy violation and third-party platform actions and Clients or user are responsible for compliance with the respective platform terms.
- e. **Multivendor Store:** The Company website may host a multivendor market place where independent vendors list their products, the company provides the platform only, the Company is not a manufacturer of the goods, and the company does not guarantee the quality and authenticity of the goods listed.

7. DELIVERY

- 7.1. The Company facilitates the delivery of physical products purchased through the Website either directly or through couriers. Delivery timelines, costs, and methods shall be communicated at the time of checkout or order confirmation.

- 7.2. All deliveries shall be estimated only and not guaranteed, delivery time may vary time depending on product availability, vendor processing time, customer location, courier and freight services, customs and clearance and force majeure events.
- 7.3. Delivery fees shall be indicated at checkout and may vary based on distance, weight, dimensions, or courier rates, where applicable- additional costs such as customs duties, handling fees, storage or warehousing charges shall be borne by the customer unless expressly stated otherwise.
- 7.4. The Risk of loss, damage, or theft of the product passes to the Client upon:
- a. Delivery to the Client's designated address; or
 - b. Delivery to the courier or transporter, where the vendor arranges shipment; or
 - c. Client collection from a designated pick-up location.
 - d. Title to the product passes to the Client upon full payment of the purchase price.
- 7.5. Clients agree to be available or ensure an authorized person is available to receive the delivery; provide accurate contact information and delivery instructions; and comply with all legal requirements relating to the receipt of goods, including customs declarations where applicable.
- 7.6. The Company may facilitate the shipping and delivery of physical goods purchased through the Website either directly, through independent vendors operating on the Website's marketplace, or through third-party courier, logistics, or transport service providers engaged by the Company or the vendor. Delivery services may be offered within Kenya or internationally depending on the nature of the goods and the delivery destination specified by the Client.
- 7.7. Where goods are purchased from independent vendors through the Website's marketplace, the respective vendor shall be responsible for the preparation, packaging, dispatch, and fulfillment of the order unless otherwise specified. Delivery timelines, shipping methods, and related policies may therefore vary depending on the vendor. The Company provides the online platform facilitating such transactions and, unless expressly stated otherwise, does not assume responsibility for vendor-managed deliveries.
- 7.8. In certain circumstances, the Company may provide shipping, courier, or freight forwarding services on behalf of independent vendors or customers. Where the Company provides such shipping or courier services, the Company's responsibility shall be limited to the transportation and delivery of the goods as arranged. The Company shall not be responsible for the nature, quality, legality, or condition of the goods supplied by independent vendors, provided that the Company has handled the goods with reasonable care during transit.

7.9. Shipping and delivery charges may apply and will be communicated during the checkout process or at the time of order confirmation. Delivery charges may vary depending on the destination, weight, dimensions, value of the goods, and the shipping method selected. Any applicable customs duties, import taxes, insurance costs, or regulatory fees related to international shipments shall be borne by the customer unless otherwise expressly agreed.

7.10. For international deliveries, shipments may be subject to customs clearance procedures and inspections by regulatory authorities. Clients shall be responsible for compliance with import laws of the destination country and for payment of any applicable customs duties, taxes, or clearance fees unless otherwise agreed.

8. RETURNS AND REFUNDS POLICY

8.1. Clients may request the return of eligible physical products purchased through the Website within three (3) days from the date of delivery, subject to the conditions set out in this clause, a request must be submitted to the Company in writing.

8.2. For a return to be accepted, the product must meet the following conditions: the product must be unused and in the same condition in which it was delivered to the Client; the product must be returned in its original packaging, including all labels, tags, accessories, manuals, warranty cards, and any accompanying promotional items; the client must provide valid proof of purchase, such as an order confirmation, invoice, receipt, or proof of payment issued through the Website; the product must not show any signs of use, damage, alteration, or tampering after delivery.

8.3. The Company reserves the right to inspect returned items prior to approving any refund, exchange, or replacement.

8.4. Unless the return is due to an error, mistake and/or omission attributable to the Company (*including but not limited to the delivery of incorrect, defective, or damaged products*), all costs associated with returning the product, including shipping, handling, and packaging expenses, shall be borne by the Client.

8.5. Upon receipt and inspection of the returned product, and subject to compliance with the conditions stated herein, the Company may, at its discretion: issue a refund of the purchase price (*excluding any non-refundable transaction or delivery charges*); provide a replacement product, subject to availability; or offer an exchange for a product of equal value. Refunds, where applicable, shall be processed through the original method of payment within a reasonable period after approval of the return.

8.6.Certain categories of products may not be eligible for return due to hygiene, safety, customization, or regulatory considerations. Such products may include, but not limited to, personalized items, perishable goods, hygiene-sensitive items, digital products, or items specifically marked as non-returnable at the time of purchase.

8.7.Where products are sold by independent vendors through the Website's marketplace, returns may be subject to the vendor's return policy provided that such policies comply with applicable consumer protection laws. The Company may facilitate the return process but shall not be responsible for the vendor's failure to honor return obligations.

8.8.The Company reserves the right to reject any return request where: the product has been used, damaged, or altered after delivery; the product is returned without original packaging or essential components; the request is made outside the stipulated return period; or the customer fails to provide valid proof of purchase.

9. PRIVACY POLICY AND DATA PROTECTION

9.1.The Company is committed to protecting the privacy and personal data of all users, clients, vendors, and visitors who interact with the Website or utilize the services offered in accordance with applicable Data Protection laws including the Data Protection Act, 2019 of Kenya.

9.2.By accessing or using the Website and the services offered through it, you acknowledge and consent to the collection and processing of your personal information as described in this policy.

9.3.While providing logistics, clearing and forwarding services, digital services, marketplace services, and general trading operations, the Company may collect and process the following categories of personal information from clients, vendors, and other users: Identification documents for customs processing, KRA PIN for clearance and regulatory compliance, contact information, payment information, shipment details and social media details.

9.4.Personal information collected by the Company may be used for the following purposes: processing customs clearance documentation and regulatory compliance, facilitating import, export, freight forwarding, warehousing, and delivery services, facilitating identification of the client and/or user, processing payments, issuing invoices, communicating with clients/users regarding services, delivery and/or shipments, maintaining operational records and administration, complying with legal, tax, regulatory, and customs obligations, and providing digital services including social media account setup and online store integration.

9.5.Clients and users are responsible for ensuring that all personal information provided to the Company is accurate, complete, and up to date. The Company shall not be

liable for any delays, penalties, or losses resulting from inaccurate or incomplete information provided by the user and/or client.

9.6. The Company implements reasonable technical and organizational measures to protect personal data against unauthorized access, misuse, alteration, disclosure, or loss. Access to personal information is restricted to authorized personnel, service providers, or regulatory authorities where necessary for the provision of services or compliance with legal obligations.

9.7. Personal data may be shared with third parties only where necessary for service delivery or legal compliance. Such parties may include customs authorities, shipping lines, airlines, insurance providers, warehouse operators, payment processors, digital platform providers, and other service providers engaged in the performance of the Company's services. The Company shall take reasonable steps to ensure that such third parties maintain appropriate standards of confidentiality and data protection.

9.8. Personal data collected by the Company shall be retained only for as long as necessary to fulfill the purposes for which it was collected, to comply with legal obligations, or to resolve disputes. Where retention is no longer required, the Company shall take reasonable steps to securely delete or anonymize such data.

9.9. In accordance with applicable data protection laws, users may have the right to: Access personal data held by the Company, request correction of inaccurate or incomplete information, request deletion of personal data where legally permissible, and/or object to or restrict certain data processing activities.

9.10. Given the international nature of logistics and trade services, personal data may be transferred to entities located outside Kenya including: foreign suppliers, international logistics company, and digital platform providers.

10. COOKIES

10.1. Our website may use cookies and similar technologies to: improve website functionality; analyse user traffic and behaviour and enhance the user experience. users and/or clients may disable cookies through their browser settings, although some website features may not function properly if cookies are disabled.

10.2. Our website may contain links to third-party websites or platforms such as advertisements. We are not responsible for the privacy practices of those websites and encourage users to review their privacy policies.

10.3. We reserve the right to update this privacy policy from time to time to reflect changes in law, technology, or business practices. Any updates will be published on the website and will become effective upon posting.

11. WAREHOUSE AND STORAGE

- 11.1. The Company may provide warehousing and storage services for goods belonging to clients, vendors, or third parties at facilities owned, leased, managed, or operated by the Company, or through approved third-party warehouse operators. Such services may include the receipt of goods, unloading, storage, inventory handling, consolidation, repackaging, labelling, and preparation of goods for onward transportation, distribution, or export.
- 11.2. All goods delivered to the Company for warehousing or storage must be accompanied by accurate documentation including packing lists, invoices, shipping documents, customs documentation, and any other information reasonably required by the Company.
- 11.3. The client warrants that all information provided in relation to the goods is true, accurate, and complete. The Company reserves the right to refuse acceptance of goods that are improperly packaged, inadequately documented, hazardous, illegal, restricted, or otherwise unsuitable for storage.
- 11.4. The client shall be solely responsible for ensuring that goods presented for storage comply with all applicable laws and regulations, including customs, safety, environmental, and public health requirements. The client shall not store any goods that are dangerous, hazardous, flammable, explosive, perishable, illegal, counterfeit, or otherwise restricted unless such nature has been fully disclosed in advance and accepted in writing by the Company.
- 11.5. Clients shall ensure that all goods delivered for storage are properly packaged, labelled, and prepared for safe handling and storage. The Company shall not be responsible for any loss or damage resulting from inadequate or defective packaging, improper labelling, inherent defects in the goods, or failure by the client to provide appropriate handling instructions.
- 11.6. Warehousing and storage services shall be subject to applicable fees as communicated by the Company depending on each circumstance. Such fees may include but are not limited to storage charges based on the volume, weight, pallet space, or duration of storage, handling and loading or unloading charges, inventory management fees, security charges, and administrative costs. Where goods remain in storage beyond the agreed storage period, additional storage charges and penalties may apply.
- 11.7. The Company shall have a general and particular lien over all goods stored in its custody or control for any unpaid charges relating to storage, handling, transport, customs clearance, or any other services provided by the Company.

- 11.8. Where the client fails to settle outstanding charges within a reasonable time after notice, the Company reserves the right, to the extent permitted by law, to retain possession of the goods and may sell, dispose of, or otherwise deal with the goods to recover outstanding charges, storage fees, and associated costs.
- 11.9. To the fullest extent permitted by law, the Company shall not be liable for any loss, damage, or deterioration of goods arising from circumstances beyond its reasonable control, including but not limited to natural deterioration, inherent defects, improper packaging, force majeure events, acts of third parties, or regulatory actions.
- 11.10. In any event, the Company's liability, if any, shall be limited to the actual and direct loss proven and shall not exceed the declared value of the goods or the amount of storage charges paid in respect of the affected goods, whichever is lower.
- 11.11. Goods may be stored for the period of fourteen (14) days after which the Company may request the client to collect or arrange for the removal of the goods.
- 11.12. Where goods remain uncollected for an extended period and the client fails to respond to communications from the Company, the Company reserves the right, subject to applicable law, to treat such goods as abandoned and may dispose of or sell the goods to recover outstanding storage fees and associated costs.
- 11.13. The Company reserves the right to inspect goods stored within its facilities where reasonably necessary for safety, regulatory compliance, or operational purposes. Such inspections shall not relieve the client of responsibility for compliance with applicable laws or for providing accurate declarations regarding the nature of the goods.

12. INDEMNITY

- 12.1. The Client shall indemnify and hold harmless, the company against all liability, loss, damage, cost and expenses arising from the nature of the goods and/or consignment; out of the company acting on the instructions of the client; arising out of breach of warranty or obligation and/or negligence by the client.
- 12.2. The Client shall indemnify the Company from all liability arising from loss of goods and/or consignment, for deviation, mis-delivery and/or non-delivery unless the notice of claim is received from the customer in writing within three days after the end of a transit, failure to give the timely notice shall be a complete defence to any suit commenced.
- 12.3. The Client shall indemnify, defend and hold the Company harmless from any claims, liability arising from transit of client goods and/or consignment or any conduct of the Client which violates any laws.

12.4. The Client shall indemnify, defend and hold the Company harmless from any claims, liability arising from transit of client goods and/or consignment or any suit and/or legal claim which the Company may incur, suffer or may be required to pay due to the conduct/omission and/or breach of the Client.

13. LIEN

13.1. The goods and/or consignment and/or documents related to the goods and consignment shall be subject to lien and/or right of detention in respect to monies, penalties, costs, outstanding balance and charges owed for goods and/or services rendered by the Company.

13.2. In the event there is non-payment for goods and/or services and/or consignment and these monies remain unpaid for thirty (30) days from the date of accrual, the goods and/or consignment may be sold by public auction and/or by private contract at the sole discretion of the Company, without the need for a court order.

13.3. The Company will not be liable for any deficiencies or reduction in the value received on the sale, nor will the client be relieved from the liability merely because the goods and/or consignment have been sold.

14. GENERAL TERMS AND CONDITIONS

14.1. All intellectual property rights relating to the Company's business, services, website, software, digital platforms and marketplace, including but not limited to trademarks, logos, service marks, trade names, brand elements, domain names, software code, website design, text, graphics, images, videos, databases, documents, marketing materials and other proprietary content (collectively referred to as the "**Company Content**") shall remain the exclusive property of the Company or its licensors.

14.2. Where third parties upload, list or publish content on the Company's marketplace platform, including product descriptions, images, trademarks or brand materials, such vendors retain ownership of their respective intellectual property.

14.3. The Company's website and online platforms shall be used strictly for lawful purposes and in a manner that does not violate, infringe upon, restrict or inhibit the rights of other users or any third party. Users shall not engage in any conduct that may damage, disable, overburden or impair the proper functioning of the website or interfere with any other party's use and enjoyment of the platform.

14.4. Each vendor listing products or services on the Website acknowledges and agrees that they operate as an independent seller and are solely responsible for all aspects of the products or services they offer through the platform. Vendors shall

bear full responsibility for the quality, legality, and accuracy of their listings and transactions.

14.5. The Company operates solely as a marketplace facilitator providing an online platform for vendors to list and sell their products, the Client shall be responsible for Product description and representation, Price accuracy, Order fulfilment, shipping and delivery, returns, refunds and customer complaints, Legal and regulatory compliance.

14.6. The Company does not assume responsibility or liability for the quality, safety, legality or availability of products listed by the vendors nor for the conduct of the vendors in fulfilling the orders.

14.7. The Company reserves the right, at its sole discretion and without prior notice, to suspend or terminate a user's access to the website where such user is found to have engaged in unauthorized use, misuse, or any activity that may disrupt the operation of the website or violate these Terms and Conditions, particularly in the event a user is engaged in misuse of the website, introduction of malicious software, fraudulent activities, or any attempt to disrupt, compromise or interfere with the security, integrity or availability of the website or its related systems.

15. TERMINATION

15.1. The Company is at liberty to terminate an agreement with a client on grounds of violation of the terms and conditions set herein, subject to a seven (7) days written notice of termination.

15.2. Termination of an agreement shall not prejudice any rights or claims which may accrue prior to the termination.

16. FORCE MAJEURE

16.1. The Company shall not be liable for whatsoever reason and/or shall be relieved of any liability, if the loss, damage (financial and/or proprietary) is caused by the following cases:

- 16.1.1. Act or omission of the client and/or any person working as an agent, servant, employee and/or representative of the client;
- 16.1.2. Failure, negligence and/or lack of compliance by the client in respect to legal compliance and/or necessary security, safety and environmental compliance;
- 16.1.3. Inherent vice caused by God or nature;
- 16.1.4. War, threat of war, official action, COVID-19, National pandemic, , civil disturbance, sabotage, strike, lock-out, interference with communication, lack of transport or labour or storage;
- 16.1.5. Storm, fog, lightning, poor road condition, heavy flood, fire, explosion, burglary, theft, collapse;

16.1.6. Any incident the Company could not avoid by reasonable care and consequences which it is unable to foresee and excessive of any due diligence.

16.2. In the event of force majeure, the agreement between the parties shall remain in force, the company's obligation shall however remain suspended for as long as the force majeure lasts.

16.3. All costs and expense incurred by the company until the occurrence of an event of force majeure shall be reimbursed by the Client to the company, together with all additional costs incurred.

17. JURISDICTION AND GOVERNING LAW

Parties agree that the contractual relationship shall be construed according to the Laws of the Republic of Kenya without giving consideration to the Conflict of Laws. Parties hereby consent to the Jurisdiction of the Laws of Kenya and any action or claim shall be brought in the courts of Kenya unless otherwise by written consent of the parties.

18. AGE OF MAJORITY

By accessing, registering on, or using this Website and any services provided through it, the user represents and warrants that they have attained the age of majority in their country of residence or jurisdiction, and that they possess the legal capacity and authority to enter into binding contracts under applicable law.